



DEPARTMENT OF HUMAN SERVICES

Behavioral Health

BEHAVIORAL HEALTH EXECUTIVE DIRECTOR RULES

2 CCR 502-5

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Addition of Sections 20.000 through 20.600 were final adoption following publication at the 7/10/2015 Executive Director rule-making session (Rule-making# 15-4-10-1), with an effective date of 9/1/2015. Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Colorado Department of Human Services, Office of Strategic Communications and Legislative Relations, State Board Administration.

Revisions to Sections 20.000 through 20.500 were final adoption following publication at the 12/4/2015 Executive Director rule-making session (Rule-making# 15-9-1-2), with an effective date of 2/1/2016. Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Colorado Department of Human Services, Office of Strategic Communications and Legislative Relations, State Board Administration.

20.100 EXECUTIVE DIRECTOR RULES – THE PROCEDURE FOR AWARDING GAMBLING ADDICTION GRANTS

20.100.1 DEFINITIONS

“Behavioral Health Professional” means a psychologist licensed pursuant to Part 3 of Article 43 of Title 12, C.R.S.; a clinical social worker licensed pursuant to Part 4 of Article 43 of Title 12, C.R.S.; a marriage and family therapist licensed pursuant to Part 5 of Article 43 of Title 12, C.R.S.; a professional counselor licensed pursuant to Part 6 of Article 43 of Title 12, C.R.S.; a social worker licensed pursuant to Part 4 of Article 43 of Title 12, C.R.S.; or an addiction counselor licensed or certified pursuant to Part 8 of Article 43 of Title 12, C.R.S.

“Entity or Program” means any facility, agency, private practice, or individual behavioral health professional that provides gambling addiction counseling services.

20.100.11 GENERAL PROVISIONS

Pursuant to Section 12-47.1-701(2)(a)(III), C.R.S., of the moneys transferred to the limited gaming impact account and the gambling addiction account, two percent (2%) shall be used to award grants for the provision of gambling addiction counseling, including prevention and education, to Colorado residents.

20.100.2 GRANT ADMINISTRATION

- A. Eighty-five percent (85%) of the moneys in the gambling addiction account must be awarded, as Gambling Addiction Counseling Grants, to provide direct gambling addiction counseling services.
- B. Ten percent (10%) of the moneys in the gambling addiction account must address prevention and education. This will be done by awarding Gambling Addiction Training Grants.

- C. Five percent (5%) of the moneys in the gambling addiction account may be used by the Colorado Department of Human Services to cover the direct and indirect cost of administering the grant program.

20.100.3 GAMBLING ADDICTION COUNSELING GRANT CRITERIA

A. Gambling Addiction Counseling Grant Awards

Gambling Addiction Counseling Grants must be awarded to entities or programs that:

1. Are state or local public or private; and,
2. Are in good standing with their licensing agency; and,
3. Provide direct gambling addiction counseling services to Colorado residents; and,
4. Employ or are seeking to employ behavioral health professionals who are nationally certified Gambling Counselors to provide the gambling addiction counseling services.

Behavioral health professionals providing the gambling addiction counseling services must be in good standing with the Colorado Department of Regulatory Agencies (DORA).

B. Gambling Addiction Counseling Grant Application Procedure

1. Gambling Addiction Counseling Grant Applications

Information on where to apply for a Gambling Addiction Counseling Grant will be posted on the Office of Behavioral Health website.

2. Gambling Addiction Counseling Grant Application Contents

Applications for a Gambling Addiction Counseling Grant must include, but not be limited to, the following information:

- a. Proof that the criteria in Section 20.100.3, A, is met; and,
 - b. The amount of moneys being requested to provide gambling addiction counseling services.
3. Timelines for Gambling Addiction Counseling Grant Application

Gambling Addiction Counseling Grant applications may be solicited on dates determined by the Office of Behavioral Health.

20.100.31 AWARDING GAMBLING ADDICTION COUNSELING GRANTS

Subject to available funds, the Office of Behavioral Health will award Gambling Addiction Counseling Grants in accordance with the Colorado Procurement Code, Articles 101 through 112 of Title 24, C. R. S.

20.100.32 GAMBLING ADDICTION COUNSELING GRANT Awardee DATA REPORTING REQUIREMENTS

All awardees will be required to submit data to the Office of Behavioral Health, to include, but not limited to:

- A. Number of clients served;
- B. Dollar amounts of services provided; and,
- C. Availability of other payor sources.

20.100.4 GAMBLING ADDICTION TRAINING GRANTS AND CRITERIA FOR GRANT AWARDEES

- A. Gambling Addiction Training Grants must be used to:
 - 1. Cover the cost of approved gambling specific training or education; or,
 - 2. Cover the cost of approved supervision/consultation with an international gambling counselor board approved clinical consultant; or,
 - 3. Cover the cost of the National Certified Gambling Counselor exam; or,
 - 4. Cover the initial cost of certification to become a National Certified Gambling Counselor.
- B. Gambling addiction training grant applicants must meet the following requirements:
 - 1. Bachelor's degree or higher in a behavioral health field; and,
 - 2. Certified Addiction Counselor II or higher and/or a behavioral health professional as defined in Section 20.100.4; and,
 - 3. Meet at least half of the National Certified Gambling Counselor (NCGC), as revised June 15, 2015, hours requirements.
- C. Gambling Addiction Training Grant Application Procedure
 - 1. Gambling Addiction Training Grant Applications

Information on where to apply for a Gambling Addiction Training Grant will be posted on the Office of Behavioral Health website.
 - 2. Gambling Addiction Training Grant Application Contents

Applications for a Gambling Addiction Training Grant must include, but not be limited to, the following information:

 - a. Proof that the criteria in Section 20.100.4, B, is met; and,
 - b. The training/supervision/testing requirement(s) that the grant moneys will cover.
 - 3. Timelines for Gambling Addiction Training Grant Application

Gambling Addiction Training Grant applications may be solicited on dates determined by the Office of Behavioral Health.

20.100.41 GAMBLING ADDICTION TRAINING GRANT AWARDING PROCEDURE

Awarding Procedure:

Subject to available funds, the Office of Behavioral Health will award Gambling Addiction Training Grants in accordance with the Colorado Procurement Code, Articles 101 through 112 of Title 24, C. R. S.

20.100.42 GAMBLING ADDICTION TRAINING GRANT VERIFICATION PROCEDURE

Verification shall be provided to the Office of Behavioral Health by the Gambling Addiction Training Grant awardees confirming that training/supervision/testing or other approved Gambling Addiction Training Grant activity was completed in the fiscal year that money was awarded.

- A. The Gambling Addiction Training Grant awardee shall send documentation of completed training/supervision/testing or other approved Gambling Addiction Training Grant activities to the Gambling Addiction Grant program administrator at the Office of Behavioral Health within thirty (30) calendar days after the completion of the training/supervision/testing or other approved Gambling Addiction Training Grant activity.
- B. The Office of Behavioral Health will seek repayment of the funds awarded to individuals who received them but did not obtain National Certification as a Gambling Counselor (NCGC) within three (3) years.

20.100.5 APPEALS PROCESS FOR GAMBLING ADDICITON COUNSELING GRANTS AND GAMBLING ADDICTION TRAINING GRANTS

All appeals for the denial of a Gambling Addiction Counseling Grant or a Gambling Addiction Training Grant will follow the appeal process set forth in the Colorado Procurement Code, Article 109 of Title 24, C.R.S.

20.100.6 REPORTING

The Office of Behavioral Health must submit a yearly report, by January 1, to the Health and Human Services Committee of the Senate and House of Representatives. These reports must detail:

- A. The amount of moneys allocated to the gambling addiction account;
- B. The number of grant applications received; and,
- C. The amount of money requested; and,
- D. The total amount of money awarded; and,
- E. The persons receiving the grants; and,
- F. The dollar amounts awarded to each person.

20.200 EXECUTIVE DIRECTOR RULES – CERTIFIED ADDICTION COUNSELOR (CAC) CLINICAL TRAINING PROGRAM APPROVED TRAINER FEES

20.200.1 DEFINITIONS

“Co-trainers” means both trainers must be in attendance for the full approved training; each has specific approved curriculum sections to teach, and neither is approved to teach the class independently of the other.

“Single trainer” means the trainer is responsible for training the entire approved curriculum.

20.200.2 GENERAL PROVISIONS

An applicant applying for CAC clinical training program approved trainer status shall submit a complete application with required documentation and a one-time fee established pursuant to 27-80-111, C.R.S.

20.200.3 CAC CLINICAL TRAINING PROGRAM APPROVED TRAINER FEES

- A. An applicant applying as a single trainer shall submit a one-time fee of one hundred fifty dollars (\$150.00).
- B. An applicant applying as co-trainers shall submit a one-time application fee of two hundred dollars (\$200.00).

Editor’s Notes

History

Entire rule eff. 09/01/2015.

Entire rule eff. 02/01/2016.

Entire rule eff. 09/01/2018.